

Krishna Gopal Pandey v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 April 2011 · WRIT - C No. - 23176 of 2011 · **Writ dismissed; estimate dispute left to s.42(5)/cl.7.10 forum.**

HEADNOTE

A dispute over the licensee's unpaid estimate for an electricity connection is a factual grievance for the statutory forum under s.42(5) of the Electricity Act, 2003 read with cl.7.10 of the U.P. Electricity Supply Code, 2005, not the writ court. The petition was dismissed, with liberty to proceed in accordance with law.

FACTUAL SUMMARY

The petitioner, Krishna Gopal Pandey, moved the Allahabad High Court alleging that despite a Division Bench order of 13 January 2011 and subsequent contempt-court directions, the respondent electricity authority had still not given him a connection. The respondents' case was that they had sent an estimate for the connection which remained unpaid. The petitioner disputed that estimate.

HOLDING-UNITS

INTERPLAY · UP-2005::7.10

connection estimate — writ vs CGRF

HOLDING

A dispute over the licensee's estimate for an electricity connection cannot be decided on the writ side. Section 42(5) of the Electricity Act, 2003 read with clause 7.10 of the U.P. Electricity Supply Code, 2005 (and the 2007 Regulations) is the appropriate forum for such factual grievances; the writ was dismissed with liberty to proceed in accordance with law.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ESTIMATE FOR THE ELECTRICITY CONNECTION WAS CORRECT OR PAYABLE

Merits of the estimate dispute left to the statutory grievance forum. ¶ 1